

24STCV23377 24STCV23377

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-01

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Case Number: 24STCV23377 Hearing Date: July 1, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV23377

SAMANTHA

LOPEZ vs CYDNEY HENDERSON

July

1, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT CYDNEY HENDERSON'S FOR TERMINATING SANCTIONS AGAINST PLAINTIFF
SAMANTHA LOPEZ.

RULING:

The Court grants the unopposed Motion, as prayed.

The Court will complete, sign and file the Order received-stamped on May 20, 2026.

Moving Defendant to give notice.

I.

BACKGROUND

The Court incorporates by reference the Background section of the Minutes entered on April 8, 2025.

On May 20, 2026, Defendant filed the Motion for Terminating Sanctions against Plaintiff, for disobedience of the discovery Order filed on February 19, 2026.

Plaintiff again has filed no Opposition to a motion.

II.

LEGAL STANDARD

Where a party willfully disobeys a discovery order, courts have discretion to impose terminating, issue, evidence or monetary sanctions. (E.g., Code Civ. Proc., §§ 2023.010, subd. (g), 2030.290, subd. (c); *R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 495.)

III.

ANALYSIS

Defendant moves for terminating sanctions, or an Order to Show Cause (OSC) re contempt, because Plaintiff did not serve further responses or pay sanctions as ordered. Defendant reports that Plaintiff's counsel called on January 8, 2026, stating that Plaintiff would not be producing documents or amending discovery responses.

A court does not abuse its discretion in ordering ultimate sanctions against a party that has

“persisted in its pattern of failure or refusal to give meaningful responses to discovery.” (Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc. (2008) 163 Cal.App.4th 1093, 1106.)

The failure to file a proper and timely opposition in trial court creates a waiver of the issues on any appeal. (Bell v. Am. Title Ins. Co. (1991) 226 Cal.App.3d 1589, 1602; Cabrini Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693.)

Here, Plaintiff filed no Opposition to avoid Defendant’s sufficient showing of willful disobedience of the discovery Order that supports ultimate sanctions.

IV. CONCLUSION

Accordingly, the Court grants the Motion, as prayed.